

BEFORE THE FEDERAL MARITIME COMMISSION

SAMSUNG ELECTRONICS AMERICA, INC.

Complainant,

v.

COSCO SHIPPING LINES CO., LTD.

Respondent.

Docket No. 24-16

DECLARATION OF MARISA A. MARINELLI

I, MARISA A. MARINELLI, hereby declare as follows:

1. I am above the age of 18 years old and competent to give this Declaration. I make this declaration based on my personal knowledge and my review of relevant documents related to this matter.
2. I am a partner in the New York office of Holland & Knight LLP, counsel to Claimant Samsung Electronics America, Inc. (“Claimant” or “SEA”) in the captioned matter. I served as the lead partner involved in drafting and negotiating with counsel for Respondent COSCO of the Protective Order that was entered on August 15, 2025, in this matter (Docket Entry 68).
3. In preparing this Declaration, I have reviewed the contemporaneous correspondence exchanged with counsel for COSCO, as well as reviewed the drafts of the Protective Order exchanged between the parties. I submit this Declaration in order to address COSCO’s expected argument¹ that, by the mere inadvertent production of certain documents (the

¹ I write “expected argument” because COSCO’s memorandum is due at the same time on June 12, 2026. This waiver issue has arisen in emails between the parties, the meet and confer calls, and

“Clawback Documents”), SEA has waived any claim to privilege. Importantly, the Protective Order negotiated between the Parties and entered by the Court expressly rejects any waiver theory here.

4. SEA refused to enter into any joint stipulation unless and until the maximum protection against waiver arguments were recognized in the stipulation as SEA knew it would be producing millions of pages of documents in the coming weeks and months in connection with the document production deadlines.² As is addressed below, and is evident from the Docket Entry 68, COSCO acceded to SEA’s safeguards requirements when the joint motion was submitted to the Presiding Officer and the “Order Granting Joint Motion for Entry of Protection Order” recognized these safeguards on August 15, 2026.
5. For context, leading to the Presiding Officer’s August 15, 2026 Order, discussion of the form of a protective order commenced on or about July 23, 2025. This is because all parties agreed that producing confidential documents – with the inherent risk that privileged documents might be inadvertently produced as part of a voluminous production without a protective order - was an impediment to document production. COSCO sent the initial draft of a proposed order on July 23, 2025.

culminating in the May 29, 2026 email by COSCO to the Presiding Officer, where waiver is addressed as a primary argument challenging SEA’s privilege argument in support of clawback.

² For context, as recognized in the Presiding Officer’s Memorandum Order, the issue of protective order and production of documents was a key discussion area at the status conference held on August 12, 2025. In it, the Memorandum Order memorialized the state of affairs as to the production of documents at this time: “At the conference, SEA stated that it has provided approximately 350,000 pages of records (over 93,000 documents) and anticipates providing another 50,000 to 100,000 pages. COSCO has produced 6,000 pages of records and will produce another 500 pages on August 15, 2025.” Order at p. 2. Docket Entry 66.

6. In recognition of the parties' negotiations of the Protective Order, this court ordered the parties to file a joint motion for a Protective Order by 5 p.m. on August 14, 2025. See Memorandum Order dated August 13, 2026, at p. 2. Docket Entry 66.
7. Drafting and some rather extensive negotiations of the Protective Order in this case occurred over a 3-week time period, from approximately July 23 up to the filing on August 14, 2025. During that time, the parties exchanged various drafts of the Protective Order, which specifically included the measures and protections that the parties would be afforded in the event of the inadvertent production of privileged documents.
8. In consideration of the massive volume of documents and information that would be produced using technology – including technology-assisted review of documents – the parties very explicitly addressed the protections that would be afforded in the event privileged documents or information was produced. Importantly, whether any privilege would be waived by the mere production of a protected document was the subject of multiple email exchanges, deletions and re-insertions of language in the various drafts, and also the subject of meet and confers.
9. To be clear, SEA specifically addressed this issue in drafts of the Protective Order by including language stating that “Pursuant to Fed. R. Evid. 502, the production of privileged or work-product protected documents, electronically stored information (“ESI”) or other information, whether inadvertent or otherwise, is not a waiver of the privilege or protection from discovery in this case or in any other federal or state proceeding. This Order shall be interpreted to provide the maximum protection allowed by Federal Rule of Evidence 502(d).” Protective Order, ¶ 14.

10. SEA further included a provision stating, “The provisions of Federal Rule of Evidence 502(b) do not apply.” Protective Order, ¶ 15.
11. The primary reason for including the provisions in paragraphs 14 and 15 of the Protective Order was (a) to eliminate the possibility of a party arguing that privilege protection had been waived by the protection of protected documents as part of the anticipated massive productions of documents, reviewed using technology, and (b) to avoid the requirements of FRE 502(b) and the possibility of protracted litigation over whether the requirements of subsection (b) had been met. In the event that a party discovered, at any time, that it had produced a privileged document, it could notify the other party and ask that the document be returned. Of course, the recipient party could challenge the claimed privilege. However, the issue of waiver is effectively eliminated in light of the provisions of the Protective Order.
12. Important for present purposes, the noted provisions in paragraphs 14 and 15 were initially challenged by COSCO during the negotiations and drafting of the Protective Order. While counsel for COSCO did seek to delete the provision in paragraph 14, giving the parties the maximum protection under FRE 502(d), after correspondence and a meet and confer, COSCO’s counsel ultimately agreed to keep in the language quoted above and that appears in the final Protective Order entered in this case.
13. The Protective Order safeguards should have avoided this last six weeks of demands by COSCO concerning waiver points and arguments, and the proffered arguments expected in its June 12, 2026. But COSCO has ignored multiple references and points concerning the Protective Order, resulting in the necessary submissions to the Presiding Officer

because COSCO will ultimately not be able to avoid recognition of the safeguards it jointly agreed to and submitted by way of the Protective Order in this action.

Pursuant to 28 U.S.C. § 1746(2), I declare under penalty of perjury under the law of the United States that the foregoing is true and correct.

Executed in Brooklyn, New York, on June 12, 2026.



Marisa Marinelli